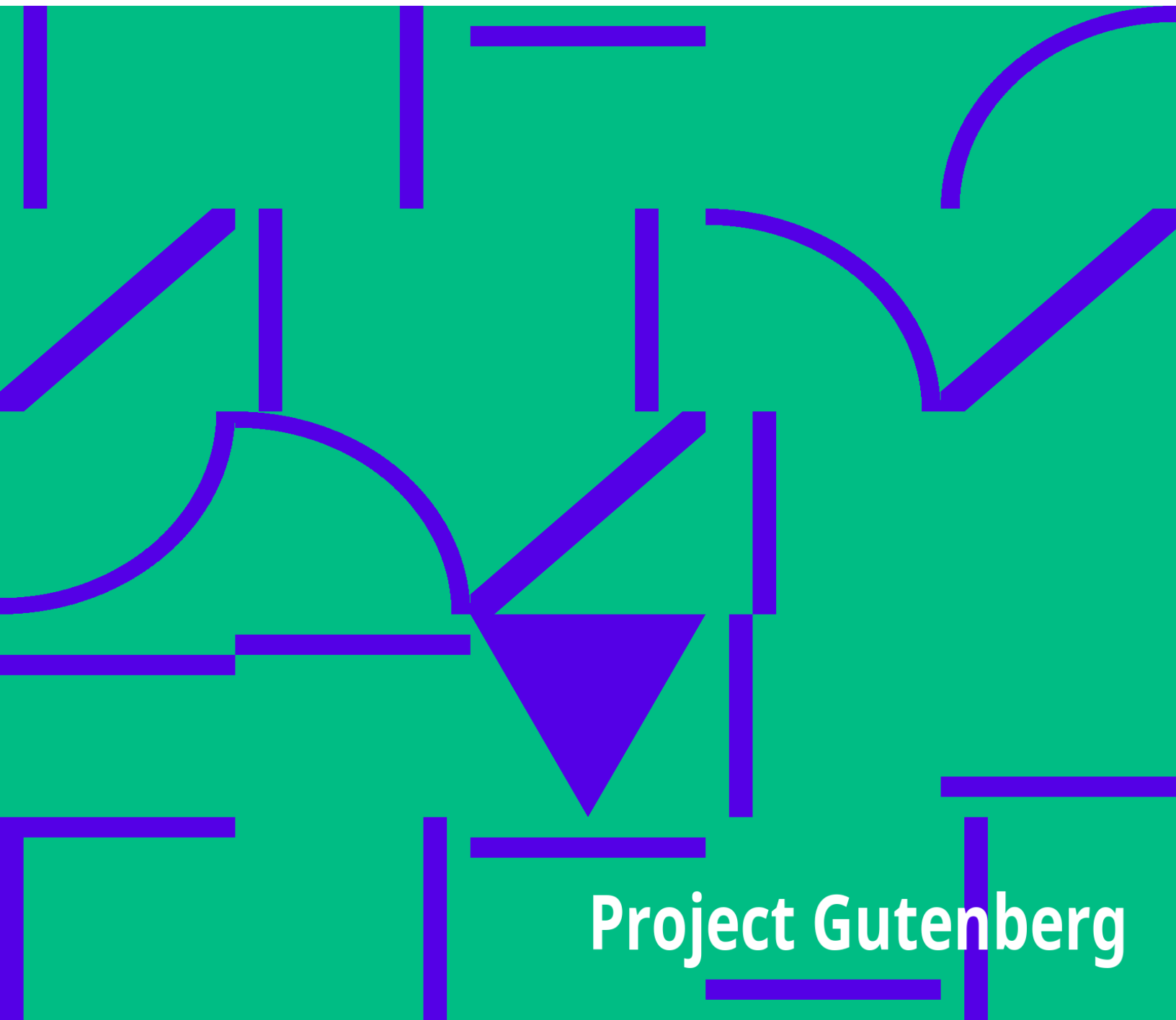


The Unthinking Destroyer

Rog Phillips

The background of the lower half of the image is a solid teal color. Overlaid on this background is an abstract pattern of thick, vibrant purple lines and shapes. These include straight lines of varying lengths and orientations, as well as several curved lines and arcs. A prominent feature is a solid purple inverted triangle located in the lower-middle section. The overall effect is a dynamic, geometric composition.

Project Gutenberg

The Unthinking Destroyer

Rog Phillips



Project Gutenberg

The Project Gutenberg eBook of The Unthinking Destroyer

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Unthinking Destroyer

Author: Rog Phillips

Illustrator: W. E. Terry

Release date: December 15, 2009 [eBook #30683]

Most recently updated: January 5, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/30683

Credits: Produced by Greg Weeks, Stephen Blundell and the Online Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE
UNTHINKING DESTROYER ***

THE UNTHINKING DESTROYER

by ROG PHILLIPS

**Gordon and Harold both
admitted the possibility of thinking
entities other than human. But would
they ever recognize the physical form
of some of these beings?**

"HEY, Gordon!"

Gordon Marlow, Ph.D., straightened up and turned in the direction of the voice, the garden trowel dangling in his dirt-stained white canvas glove. His wide mouth broke into a smile that revealed even white teeth. It was Harold Harper, an undergraduate student, who had called.

"Hop over the fence and come in," Gordon invited.

He dropped the trowel and, taking off his work gloves, reached into his pocket and extracted an old pipe. He filled it, the welcoming smile remaining on his lips, while Harold Harper approached, stepping carefully between the rows of carrots, cabbages, and cauliflower.

Harold held a newspaper in his hand. When he reached Gordon Marlow he held it open and pointed to the headline. **ROBOT ROCKET SHIP TO MARS.**

Gordon took the paper and read the item, puffing slowly and contentedly on his old pipe. His eyes took on an interested look when he came to the reporter's speculations on the possibility of intelligent life on Mars.

Finally he handed the newspaper back to Harold.

"You know, Harold," he said, "I wonder if they would recognize intelligent life if they saw it on other planets."

"Of course they would," Harold replied. "Regardless of its form there would be artifacts that only intelligent life could create."

"Would there?" Gordon snorted. "I wonder."

He squatted down, picking up the trowel and lazily poking it into the rich soil at his feet.

"That's why I wonder," he continued. "We are so prone to set up tests on what intelligent life is that we are likely to miss it entirely if it doesn't conform exactly to our preconceived notions. We assume that if a being is intelligent it must get the urge to build artifacts of some kind—pots and vases, houses, idols, machinery, metal objects. But **MUST** it? In order to do so it must have hands and perhaps legs. Suppose it doesn't have such things? Suppose that no matter how intelligent it might be, it could not do those things!"

"Then it wouldn't be intelligent, would it?" Harold asked, puzzled.

"We are assuming it is," Gordon said patiently. "There are other outlets for intelligence than making clay pots. As a last resort for an intelligent being there is always—thinking."

He chuckled at his joke.

"I've often wondered what it would be like to be a thinking, reasoning being with no powers of movement whatsoever. With bodily energy provided automatically by environment, say, and all the days of life with nothing to do but think. What a chance for a philosopher! What depths of thought he might explore. What heights of intellectual perception he might attain. And if there were some means of contact with others of his kind, so that all could pool their thoughts and guide the younger generation, what progress such a race might make!"

ND so we see," Ont telepathed, "that there must be a Whole of which each of us is a part only. The old process which says 'I think, therefore I am,' has its fallacy in the statement, 'I think.' It assumes that that assertion is

"Axiomatic and basic, when in reality it is the conclusion derived from a long process of mental introspection. It is a theory rather than an axiom."

"But don't you think, Ont," Upt replied, "that you are confusing the noumenon with the phenomenon? What I mean is, the fact of thinking is there from the very start or the conclusion couldn't be reached; and the theoretical conclusion, as you call it, is merely the final recognition of something basic and axiomatic that was there all the time!"

"True," Ont replied. "But still, to the thinking mind, it is a theory and not an axiom. All noumena are there before we arrive at an understanding of them. Thought, if it exists as such, is also there. But the theoretical conclusion I think has no more degree of certainty than any other thing the mind can deal with. To say 'I think' is to assert the truth of an hypothesis which MAY be true, but not necessarily so. And then to conclude, 'Therefore I am,' is to advance one of the most shaky conclusions of all time. Underneath that so-called logical conclusion lies a metaphysics of being, a theory of Wholes, a recognition by differentiation of parts, with a denial of all but the one part set apart by that differentiation, and, in short, the most irrational hodgepodge of contradictory conclusions the thinking mind can conceive. This pre-cognition that enables one to arrive at the tenuous statement, 'I think, therefore I am,' is nicely thrown out by tagging



Harold held a newspaper in his hands.

it with another metaphysical intangible called illusion—as if the mind can separate illusion from reality by some absolute standard."

"I believe you're right, Ont," Upt replied slowly, his telepathed thoughts subdued with respect. "It is possible that the concept, 'I think,' is the illusion, while the so-called illusions are the reality."

"**E**VEN without the benefit of past thoughts," Gordon was saying, whacking off a weed a yard away and nearly upsetting himself, "a mind with nothing to do but think could accomplish miracles. Suppose it was not aware of any other thinking entity, though it might be surrounded by such similar entities. It would be born or come into existence some way, arrive at self-awareness and certain other awarenesses to base its thinking on, depending on its structure, and—" he looked up at Harold startled at his own conclusion—"it might even arrive at the ultimate solution to all reality and comprehend the foundations of the Universe!"

"And eventually be destroyed without any other entity having the benefit of it all," Harold commented dryly.

"What a pity that would be," Gordon murmured. "For the human race to struggle for hundreds of years, and have some unguessable entity on Mars do all that in one lifetime—and it all go to waste while some blundering ass lands on Mars and passes it by, looking for artifacts."

"**B**UT that is only the start in the blunders contained in that most profound philosophical revelation of old," Ont stated. "After arriving at a precarious conclusion about existence the ancients were not satisfied. They had to say, 'If I am I must have been created!' Then they go on and say, 'If I was created there must be a Creator!' And thus they soar from their precarious perch in existence, soar on nonexistent wings, and perch on the essence of evanescence! They do not recognize the alternative—that to exist does not necessarily imply a beginning. They do

not recognize it because they have derived all their tools from reality around them and then denied the reality while accepting the validity of the tools of thought derived from it. And in this way they arrive at an absolute existence of Something they have never sensed or felt in any way, while denying all that they have felt and sensed, and give it attributes which their sense of idealism dictates it must have, and call it God."

"Then," Upt said thoughtfully, "I take it you are an atheist?"

"Certainly NOT," Ont growled telepathically.

"But you implied that in your comments on the conclusions of the ancients," Upt insisted.

"**B**UT if there are no artifacts," Harold said. "And no signs of intelligence whatever, how could we ever know that there WAS intelligence some place?"

"There must be some way," Gordon said. "I've taught logic at the U for fifteen years now, and I've done a lot of thinking on the subject. If we ever reach Mars I think we should be very careful what we touch. We would be clumsy bulls in a china shop, not knowing the true worth of what we found, destroying what might be found to be priceless by later and more careful explorers. Mars is older than the Earth, and I can't help being convinced that there is SOME form of intelligence there."

"**I** IMPLIED no such thing as atheism," Ont insisted. "I merely said that the reasoning used by the ancients to arrive at the Creator was the most slipshod and illogical possible. There was another line used long ago that was more solid, but still very weak. It started out with the statement, 'I can be aware of nothing but thoughts.' External stimuli, if such there are, must be transformed into thought before I can be aware of them. Since I can never be aware of anything other than thought, why assume

anything except thought exists? You, and all other things, exist as thoughts in my mind. There is nothing except what exists in my mind. Therefore, by that token, *I am God!*"

"But," Upt chuckled, "by the same token I can insist that *I am God* and you are just a product of my own creation."

"Yes," Ont agreed. "So it presents a dilemma. To resolve it, it is necessary to postulate a Supreme Mind, and to say that all things are just thoughts in God's Mind. That makes us both the same then and there is no argument about who is God!"

HAROLD kicked a lump of moist earth absently.

"It seems to me, Gordon," he said cautiously, "that you are biting the air with your teeth. If there are intelligent beings on Mars they will be aware of us, and make themselves known. If for no other reason they will do that to keep us from destroying them."

Gordon stood up and arched his back. He placed the garden trowel and gloves in the hip pocket of his coveralls and tapped his pipe on the heel of his shoe.

"You are assuming," he said, "that such beings can find a way to communicate with us. But have you thought of the possibility that if their abilities to reason are undetectable to us, by the same token they might not be aware we are intelligent? A mad bull in a pasture can think after a fashion, but would you try to reason with him? You would run if he charged you, and if he caught up with you and mauled you it would never occur to you to say, 'Look here, old boy. Let's talk this thing over first.'"

Both men laughed. Gordon started walking along the row he was standing in, toward the house. Harold kept pace.

"I see your point," he agreed.

"There are so many things we assume unconsciously when we speculate on the possibilities of intelligent life on Mars," Gordon went on, stooping over to pull a weed he had missed in his earlier weeding. "Rate of thinking is most probably a function of the material organism. Some other thinking creature might think faster or slower—perhaps so much so that we couldn't follow them even if we could tune in on their thoughts directly. Imagine a mind so ponderous that it takes a year for it to think as much as we do in a minute! Speed wouldn't necessarily have to be a function of size, either. Something incredibly small might take ages to think a simple thought. Have you ever heard the German tale called The Three Sleepers, Harold?"

"No, I haven't," Harold replied.

"**W**ELL, in a small town in Germany there were three men so fat that they could barely walk. They spent nearly all their time sleeping. The only trouble was that every day or so someone would disturb them by singing or walking by, or some other trivial thing that is always happening in a small town, no matter how dead it is.

"One time when they were disturbed three days running they got mad and decided to go to the hills. They looked in the hills until they found a nice dry cave. There they relaxed with deep sighs of contentment and went to sleep. Day after day, week after week, they slept undisturbed.

"Then one day a dog wandered into the cave, saw the three breathing mountains of flesh and heard the din of their deep snoring; and, scared half to death, let out a shrill yip and skedaddled.

"A week later one of the three sleepers stirred, opened his eyes briefly, and muttered, 'What was that noise?' Then he promptly went back to sleep.

"Ten days later the second sleeper stirred, muttered, 'Damfino,' and went back to sleep.

"Nearly a month later the third sleeper opened his eyes suddenly, stared at the roof of the cave for a moment, and said, 'I think it was a dog.' Then he

went back to sleep. The way the story goes nothing ever came near the cave again, so they are still there, fast asleep—still fat, too, I suppose."

"I see what you're driving at," Harold said, chuckling over the story. "We assume that any intelligent being whatever, if it exists, thinks at the same RATE we do; but it might not."

"That's right," Gordon admitted. "And there are even more subtle assumptions we make unconsciously. For one, we assume that a thinking creature must think in the same way we do. We might not even be able to recognize thinking when we meet it, on another planet. No—" he held up his hand to silence the question on Harold's lips, "—I don't know exactly what I mean. I'll put it this way. We have steam engines and gasoline engines. We also have electric motors. Suppose we have steam-engine thought. How would we recognize electric-motor thinking?"

"Or perhaps a little closer to what I'm trying to express, we have arithmetic and algebra. Suppose with our arithmetic minds with no slightest inkling of the existence of a variable, we run into an algebra mind? We might mistake it for something far removed from thinking or intelligence. We go on the assumption that anything that doesn't stomp up, give a salute, and solemnly announce 'How', is unintelligent."

"It might just be more interested in its own thoughts than in the visitors from Earth," Harold suggested.

"It might," Gordon said. "Or it might be intensely curious and studying the Earthmen very closely with senses other than sight and hearing."

"**B**UT," Ont added thoughtfully, "although the conclusion that we are all thoughts in the mind of the Creator is logically unshakeable, it isn't very satisfying, from a logical point, because it makes God nothing more than the compromising of a cute dilemma. It places the Creator in the same light as the final decision to locate the Capitol of the United States at Washington."

"Where's that?" Upt asked quickly.

"I don't know," Ont said testily. "That's just something I picked up out of the blue, so to speak. Inspirational thought. For all I know it's just a figment of my imagination."

"I've had inspirational thoughts too," Upt said excitedly. "I haven't spoken of them to you because I was afraid you might think I was becoming disorganized in my thoughts."

"I've done a lot of thinking about the inspirational stuff I get now and then," Ont said matter-of-factly. "If it came all the time I would be inclined to think it was the Voice of the Supreme Being Itself! But it doesn't come that way."

"Neither does mine," Upt said. "I often think there must be angels that hover over us at times and bless us with their wise thoughts, perhaps looking into us to see if we are 'ready' yet. When I seem to sense these powerful thoughts about me I try to feel humble and worshipful. I hope in that way one of them will see fit to reveal himself to me someday."

"They might," Ont said hopefully. "I wouldn't mind actually talking to one of them myself. But speaking of that, we don't know for sure that these inspirational thoughts aren't actually our own. They SEEM different, but that may be because they arise in some part of our deep subconscious thought processes. I've been trying to extend my sense of awareness in order to reach into my subconscious mind and actually plumb it to its depths. One thing I've found is that most of my REAL thinking goes on there, and only rises to the surface of consciousness when it is completed! That lends probability to the theory that ALL such voices of inspiration are merely my own subconscious mind giving me the end products of carefully thought out trains of reasoning it had dreamed up."

"I think I'll try that line of development myself," Upt said. "I'd never thought of it. Maybe inspiration is only subconscious thought rising to the surface of consciousness. Maybe it is. But if so, I'll be very disappointed. I'd hoped sometime to be able to commune with some intelligence infinitely superior to mine and really learn the true nature of things."

"I SINCERELY hope I'm wrong about it," Ont said. "I too would like to believe that there is more in reality than just us. I wonder if other kinds of entities are possible? I mean thinking beings with different forms, different senses, perhaps different types of thinking. It may be they exist and we aren't equipped to detect them. They may be around us all the time, aware of us and our puerile thoughts, but so superior to us in every way that they don't think it worth while even to consider our feeble cogitations."

"I wouldn't call YOUR cogitations feeble, Ont," Upt exclaimed admiringly.

"That is a point of relativity," Ont said, somewhat flattered. "It does seem in vain, though. We spend our existence in solving the problems of reality, and when we have solved them we have no need of the solution. It gives us a feeling of satisfaction to gain the theoretical basis of reality from our point of view. But I for one would feel much better if we could be of service to some entity who is unable to accomplish that himself, but might be able to comprehend it if we taught him."

"All very noble," Upt said skeptically. "But I can't even imagine a thinking creature different from us in any way."

"That's why it's so difficult," Ont said. "In our own minds we tend to become absolute rather than relative in our conceptions. Some other entity might, for example, think much more slowly than we, or with incredible rapidity, so that our thoughts would be sluggish to him, or so swift that he would never be able to grasp them until long after we were gone."

"Also, we tend to think that thought as we experience it, is the only possible type of thought. In reality there may be others. Different mental principles. Different material structure. Perhaps concepts outside our ability to grasp, while ours might be outside the ability of such creatures to grasp also."

"I don't believe I grasp what you're trying to say," Upt hesitated.

"Well, put it this way," Ont said patiently. "All things are relative. Why not thought? It might be possible to have two thinking minds which are relatively non-thinking. Each, from EVERY standard of the other, being totally thoughtless and without intelligence or mind."

"Now you're going too far," Upt said. "Thought is thought, I think, and—it's real. If any other entity thinks, its thinking must be real too."

"Of course," Ont murmured. "You miss the point entirely. If from every possible angle, some entity, to YOU, can't think and doesn't, it is non-thinking and unintelligent. Right?"

GORDON and Harold paused at the edge of the garden.

"Nice crop of vegetables you have there, Gordon," Harold said appreciatively.

"Thanks," Gordon said. "Say, wouldn't your wife like some fresh vegetables?"

Without waiting for an answer he stepped back into the garden, taking a knife from his pocket.

"These are nice now," he said, bending over and cutting. "Won't be much longer though. Brown spots developing already. I'll scrape off the brown stuff for you, but tell your wife to cook them right away. In a couple of days they'll spoil."

"UPT!" Ont exclaimed, exasperated. "Why don't you answer me, Upt? Upt! Where are you, Upt? Why don't you answer?"

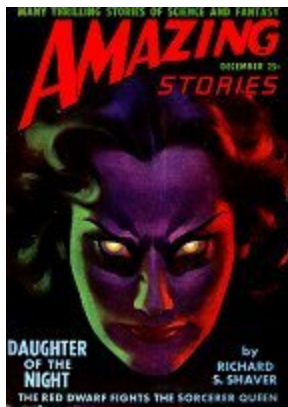
"THERE you are," Gordon said, smiling, as he handed Harold the head of cauliflower.

"Thanks," Harold said, accepting the white, fresh head, and balancing it in his palm.

The two men continued up the walk to the house.

"As I was saying," Gordon took up their conversation, "when men get to Mars, if they aren't careful they may destroy a civilization, or even thousands of intelligent beings, without knowing it...."

THE END



Transcriber's Note:

This etext was produced from *Amazing Stories* December 1948. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed. Minor spelling and typographical errors have been corrected without note.

*** END OF THE PROJECT GUTENBERG EBOOK THE
UNTHINKING DESTROYER ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

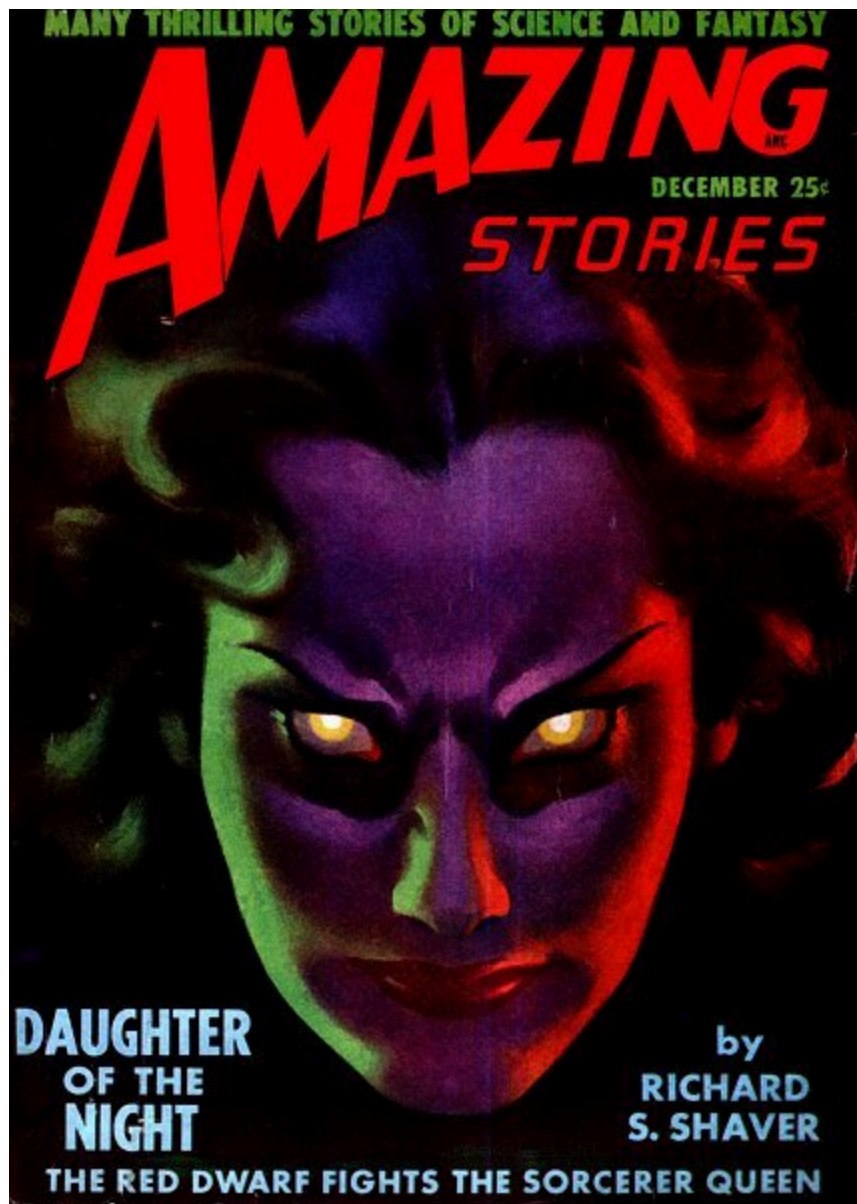
Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



[back](#)